

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2026CUBC066747: WINONA WILSON, et al. vs HYUNDAI MOTOR AMERICA
09/14/2026 in Department 44
Motion to Compel BINDING ARBITRATION AND FOR STAY OF PROCEEDINGS,
MEMORANDUM OF POINTS AND AUTHORITIES

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 3:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties. Use the subject line "SUBMISSION ON TENTATIVE", [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Notice of Ruling. Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Defendant Hyundai Motor America's Motion to Compel Binding Arbitration and for Stay of Proceedings

Tentative Ruling:

Defendant Hyundai Motor America's Motion to Compel Binding Arbitration is GRANTED. Defendant has met its burden to establish the existence of an arbitration agreement that covers the scope of the dispute. Plaintiffs Winona Wilson and Roy Wilson challenge formation only through attorney argument and submit no declaration or other evidence disputing receipt, assent, warranty use, or failure to opt out; the reply correctly emphasizes that omission. Under *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, and *Kostandian v. American Honda Motor Co., Inc.* (2026) 120 Cal.App.5th 872, Plaintiffs have not carried their responsive burden

of production. Similarly, Plaintiffs have not presented any credible defenses to arbitration. Therefore, Plaintiffs are ordered to submit their arbitrable claims to binding arbitration in accordance with the arbitration provision contained in HMA's 2025 Owner's Handbook & Warranty Information.

The Court exercises its discretion to consider both the untimely papers and to decide the motion on the merits. The opposition presents no declaration or other new evidence creating a factual formation dispute, and Defendant's reply adds no new evidence. The timeliness issue therefore concerns briefing opportunity rather than surprise evidence; both parties had opportunity to fully brief the Motion.

This action is STAYED pursuant to Code of Civil Procedure section 1281.4 pending completion of arbitration.

To the extent Plaintiffs seek public injunctive relief that is nonwaivable under *McGill v. Citibank, N.A.* (2017) 2 Cal.5th 945, this request is not ordered to arbitration and remains before the Court, but is STAYED pending completion of arbitration.

The Court does not reach HMA's alternative request to compel arbitration under the Connected Services Agreement because the Warranty arbitration provision independently requires arbitration of the pleaded arbitrable claims.

A status conference re arbitration is scheduled for **September 13, 2027, at 8:30 a.m.** The parties are required to file a Declaration regarding the status of the arbitration 10 days before the hearing.

Notice to be provided by Defendant.